

MarginThrive Capital Data Privacy Notice

Effective Date: May 2026

MarginThrive Capital (“us”, “we”, or “the Company”) is committed to protecting your personal data and respecting your privacy in accordance with the **Kenya Data Protection Act 2019** (the “Act”), the Data Protection (General) Regulations 2021, and other applicable laws.

We are the **Data Controller** of your personal data. Our contact details are:

- **Email:** dataprotectionofficer@MarginThriveCapital.com
- **Phone:** 0780358158

1. Purpose of This Notice

This Privacy Notice explains how we collect, use, store, share, and protect your personal data when you interact with us as a customer or prospective customer. It also outlines your rights under the Act.

2. Personal Data We Collect

We collect and process the following categories of personal data, only where necessary:

- **Personal Identifiers:** Full name, national ID/passport details, date of birth, gender, photographs (where applicable),
- **Contact Information:** Phone number, email address, physical address
- **Emergency / Next of Kin Information:** Names and contact details of emergency contacts or next of kin
- **Financial Information:** Bank details, income information, credit history, loan application and repayment data
- **Technical & Usage Data:** Device information, IP address, and interaction data with our platforms (where applicable)

We collect this data directly from you, from third parties (such as Credit Reference Bureaus, Your Suppliers), or automatically through our systems.

3. Lawful Basis for Processing

We process your personal data based on the following lawful grounds under the Act:

a) **Your consent** (where required) b) **Performance of a contract** with you c) **Compliance with a legal obligation** (e.g., KYC/AML requirements under the Proceeds of Crime and Anti-Money

Laundrying Act) d) **Legitimate interests** (e.g., fraud prevention, service improvement, security), provided these do not override your fundamental rights and freedoms.

4. Purposes of Processing

We process your personal data for the following explicit and legitimate purposes:

- To verify your identity and conduct KYC/AML checks
- To assess and provide lending/credit services
- To manage and administer your account and loans
- To contact you or your nominated emergency contacts/next of kin in cases of fraud, default, serious illness, or other necessary situations
- To comply with regulatory and legal obligations (including reporting to regulators and Credit Reference Bureaus)
- To improve our products and services
- For statistical analysis (using anonymised or aggregated data where possible)

5. Consequences of Not Providing Data

If you fail to provide the personal data we reasonably request, we may not be able to provide you with our services, open or maintain your account, or comply with legal requirements. This may result in us being unable to approve your loan application or having to terminate our relationship with you.

6. Sharing of Personal Data

We may share your personal data with:

- **Credit Reference Bureaus** (to promote responsible lending)
- **Regulatory authorities** (e.g., Central Bank of Kenya) as required by law
- **Third-party service providers** (data processors) such as payment processors, cloud service providers, customer support platforms, and IT service providers. These parties are contractually bound to process data only on our instructions and maintain appropriate security.
- **Business partners** only with your explicit prior consent (for marketing or additional services)

We do not sell your personal data.

7. International Transfers

Your personal data may be transferred to and processed in countries outside Kenya. Where this occurs, we ensure appropriate safeguards are in place (such as contractual agreements or adequacy decisions) in line with the Act.

8. Data Security

We implement appropriate technical and organisational measures to protect your personal data against unauthorised access, alteration, disclosure, or destruction, in accordance with the Act.

9. Data Retention

We retain your personal data only for as long as necessary to fulfil the purposes for which it was collected, or as required by law. Customer identification documents are typically retained for the duration of the relationship plus at least 7 years thereafter, as required under anti-money laundering laws. Anonymised data may be retained indefinitely for analytical purposes.

10. Your Rights as a Data Subject

Under the Kenya Data Protection Act 2019, you have the following rights:

- **Right to be informed** — about the collection and use of your data
- **Right of access** — to request a copy of your personal data
- **Right to rectification** — to correct inaccurate or incomplete data
- **Right to erasure** (“right to be forgotten”) — to request deletion of your data (subject to legal limitations)
- **Right to restrict processing**
- **Right to object** to processing (including for direct marketing)
- **Right to data portability** — to receive your data in a structured, commonly used format
- **Right not to be subject to automated decision-making** (including profiling) where it produces legal or significant effects

To exercise any of these rights, please contact our Data Protection Officer at:

dataprotectionofficer@MarginThriveCapital.com or call **0780358158**

We will respond to your request within the timelines stipulated under the Act. We may need to verify your identity before processing the request.